

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Tentative Ruling

**2026CUOR066973: ANN GARTLAN-MCARTHUR vs DENNIS SMITH
09/24/2026 in Department 40
ANTI-SLAPP MOTION TO STRIKE CROSS- COMPLAINT**

Presiding Judge Matthew P. Guasco is covering Courtroom 40 matters on this date in light of Judge Mark Borrell's indefinite leave of absence.

The following is the Court's tentative decision of the motion of Plaintiff and Cross-Defendant, Ann Gartlan-McArthur ("Ann"), to strike the Cross-Complaint of Defendant and Cross-Complainant, Dennis Smith ("Dennis"), pursuant to Code of Civil Procedure section 425.16 ("Anti-SLAPP motion"):¹

Ruling on Anti-SLAPP Motion

For the following reasons, the Court DENIES Ann's Anti-SLAPP motion:

(1) The Legislature enacted Code of Civil Procedure section 425.16 (the Anti-SLAPP statute) as a remedy for the "disturbing increase in lawsuits brought primarily to chill the valid exercise of the constitutional rights of freedom of speech and petition for the redress of grievances." (Code Civ. Proc., §425.16, subd. (a); *Wilcox v. Sup. Ct.* (1994) 27 Cal.App.4th 809, 817, 33 Cal.Rptr.2d 446, disapproved on other grounds, *Equilon Enterprises v. Consumer Cause, Inc.* (2002) 29 Cal.4th 53, 124 Ca.Rptr.2d 507, 52 P.3d 685 ("*Equilon*").) The lawsuits are commonly referred to as "SLAPP" lawsuits, an acronym for "strategic lawsuit against public participation." (*Equilon Enterprises, LLC v. Consumer Cause, Inc.*, *supra*, 29 Cal.4th at p. 57, 124 Ca.Rptr.2d 507, 52 P.3d 685, fn. 1.) A defendant opposing a SLAPP lawsuit may bring an "anti-SLAPP" special motion to strike any cause of action "arising from any act of that person in furtherance of the person's right of petition or free speech under the United States Constitution or the California Constitution in connection with a public issue...." (Code Civ. Proc., § 425.16, subd. (b)(1).) An anti-SLAPP motion may be addressed to individual causes of action and need not be directed to the complaint as a whole. (*Shekhter v. Financial Indemnity Co.* (2001) 89 Cal.App.4th 141, 150.)

(2) In ruling on an anti-SLAPP motion, a trial court uses a "summary-judgment-like procedure" at an early stage of the litigation. (*Varian Medical Systems, Inc. v. Delfino* (2005) 35 Cal.4th 180, 192, 25 Cal.Rptr.3d 298, 106 P.3d 958.) The procedure is a two-step process. First, the moving defendant must show that the acts of which the plaintiff complains were protected activity, namely, that they were taken "in furtherance of the [defendant]'s right of petition or free speech under the United States or California Constitution in connection with a public issue." (Code Civ. Proc., §425.16 subd. (b)(1).) If the defendant carries that burden, the burden shifts to the plaintiff to demonstrate a probability of prevailing on the claim. (Code Civ. Proc., § 425.16 subd. (b)(3).)

(3) In making both determinations, the trial court considers "the pleadings, and supporting and opposing affidavits stating the facts upon which the liability or defense is based." (Code Civ. Proc., § 425.16, subd. (b)(2); *Equilon*, *supra*, 29 Cal.4th at 67, 124 Ca.Rptr.2d 507, 52 P.3d 685,.) The claim may appear in a complaint, petition or cross-complaint. (Code Civ. Proc., §

425.16, subd. (h); see *Kajima Eng. & Const., Inc. v. City of Los Angeles* (2002) 95 Cal.App.4th 921, 929, 116 Cal.Rptr.2d 187.)

(4) Pursuant to Section 425.16 subdivision (f) “[t]he special motion may be filed within 60 days of the service of the complaint or, in the court’s discretion, at any later time upon terms it deems proper.” The Court finds Ann timely filed this Anti-SLAPP motion.

(5) Code of Civil Procedure section 425.16, subdivision (e), defines “protected activity” as follows:

“(1) any written or oral statement or writing made before a legislative, executive, or judicial proceeding, or any other official proceeding authorized by law, (2) any written or oral statement or writing made in connection with an issue under consideration or review by a legislative, executive, or judicial body, or any other official proceeding authorized by law, (3) any written or oral statement or writing made in a place open to the public or a public forum in connection with an issue of public interest, or (4) any other conduct in furtherance of the exercise of the constitutional right of petition or the constitutional right of free speech in connection with a public issue or an issue of public interest.”

(6) “To determine whether a claim arises from protected activity, courts must ‘consider the elements of the challenged claim and what actions by the defendant supply those elements and consequently form the basis for liability.’” (*Wilson v. Cable News Network, Inc.* (2019) 7 Cal.5th 871, 884, 249 Cal.Rptr.3d 569, 444 P.3d 706.) “[T]he mere fact that an action [or claim] was filed after protected activity took place does not mean the action [or claim] arose from that activity for the purposes of the anti-SLAPP statute.” [Citation.]” (*Park v. Bd. of Trustees of Cal. State University* (2017) 2 Cal.5th 1057, 1063, 217 Cal.Rptr.3d 130, 393 P.3d 905.) “A claim arises from protected activity when that activity underlies or forms the basis for the claim.” (*Id.*, 2 Cal.5th at p. 1062, 217 Cal.Rptr.3d 130, 393 P.3d 905.) “Critically, ‘the defendant’s act underlying the plaintiff’s cause of action must itself have been an act in furtherance of the right of petition or free speech.’ [Citations.] ... [T]he focus is on determining what ‘the defendant’s activity [is] that gives rise to his or her asserted liability—and whether that activity constitutes protected speech or petitioning.’ [Citation.]” (*Id.* 2 Cal.5th at p. 1063, 217 Cal.Rptr.3d 130, 393 P.3d 905.)

(7) When faced with a cause of action that involves both constitutionally protected and unprotected conduct, courts must “. . . examine the substance of or gravamen of each cause of action to determine whether section 425.16 applies in the first instance.” (*Scott v. Metabolife Intern., Inc.* (2004) 115 Cal.App.4th 404, 419, 9 Cal.Rptr.3d 242.) “A plaintiff cannot frustrate the purposes of the SLAPP statute through a pleading tactic of combining allegations of protected and non-protected activity under the label of one cause of action. Where the allegations of constitutionally protected activity are not merely incidental to the unprotected conduct, the protections of section 425.16 are implicated.” (*Id.*, 115 Cal.App.4th at p. 419, 9 Cal.Rptr.3d 242.) Additionally, “conduct that would otherwise come within the scope of the anti-SLAPP statute does not lose its coverage... simply because it is alleged to have been unlawful or

unethical. If that were the test, the statute...would be meaningless.” (*Kashian v. Harriman* (2002) 98 Cal.App.4th 892, 910-911, 120 Cal.Rptr.2d 576.)

(8) “The Supreme Court recently clarified that section 425.16, subdivision (e)(4)’s catchall provision calls for a two-part analysis. (*FilmOn.com Inc. v. DoubleVerify Inc.* (2019) 7 Cal.5th 133, 149, []). In other words, under the catch-all provision, step one of the process of reviewing an anti-SLAPP ruling itself contains two steps. ‘First, we ask what ‘public issue or [] issue of public interest’ the speech in question implicates—a question we answer by looking to the *content* of the speech. [Citation.] Second, we ask what functional relationship exists between the speech and the public conversation about some matter of public interest. It is at the latter stage that *context* proves useful.’ (*Id.* at pp. 149-150, [], italics added.)” (*Bishop v. The Bishop’s School* (2022) 86 Cal.App.5th 893, 904, 302 Cal.Rptr.3d 594.)

(9) Here, Ann’s anti-SLAPP motion is premised on one subordinate clause in the Cross-Complaint’s First Cause of Action for breach of an oral agreement. The gravamen of the breach of contract claim is that the parties had an oral agreement “to contribute substantial separate funds, labor, skill, construction expertise, materials, and time to renovate, repair, remodel, and improve [Ann’s] Santa Clarita Property” so that it could be sold at a premium, and the equity used “toward the acquisition of another residence that would become the parties’ shared home.” (Cross Compl., ¶ 11-12, 43) Further, the parties allegedly agreed that Dennis’s “substantial financial contributions would not constitute gifts but would instead be recognized and repaid through the parties’ joint acquisition and ownership of the replacement property or through reimbursement of the monies [he] expended for the benefit of both parties.” (Cross. Compl., ¶ 45)

(10) Ann’s property was indeed improved, and eventually sold. The parties then purchased a condominium on Harbor Boulevard as “50/50” tenants in common. Ann does not dispute that Dennis has a legal and equitable interest in the new property, but alleges a right to a sizable set-off for reimbursement. Ann filed the Complaint to enforce her partition rights. Dennis filed an Answer and the subject Cross-Complaint. The clause at issue in this motion to strike appears in paragraph 61 of the Cross-Complaint, which reads in pertinent part as follows: “[Ann] materially breached the parties’ oral agreement by filing this action seeking distribution of the parties’ interests without accounting for Smith’s contractual rights.”

(11) Read in isolation, it might appear as though Dennis is alleging that Ann’s decision to file the Complaint *is* the breach which triggers his right to recover damages. If so, the claim clearly arises from protected activity and would be subject to possible dismissal under the anti-SLAPP statute. On closer inspection, however, it is evident that Dennis is not seeking damages *because* Ann filed the Complaint. Dennis’s Cross-Complaint, read as a whole, seeks damages arising from Ann’s failure to honor the oral agreement to give Dennis “full credit” for all his contributions to the property. Ann’s unwillingness to account for Dennis’s contributions is the gravamen of the Cross-Complaint, not Ann’s filing of a lawsuit.

(12) While it is true that Ann’s Complaint only seeks equitable partition of the parties’ respective rights and interests in the property, Dennis is permitted to cross-complain that he is entitled to damages for breach of an oral agreement concerning certain reimbursements to which he alleges

he is entitled for contributions to the property. The fact that these contributions can be litigated in the partition Complaint does not establish that Dennis's Cross-Complaint for breach of the oral agreement should be barred under the anti-SLAPP statute.

(13) For the above reasons, the Court DENIES the anti-SLAPP motion.

(14) As a result of the above ruling, the Court finds it is unnecessary to reach Prong Two of the anti-SLAPP analysis (demonstration that Cross-Complaint has probable merit).

Dennis's Request for Attorney's Fees

The Court DENIES Dennis's request for attorney's fees WITHOUT PREJUDICE for two reasons:

(1) Pursuant to §425.16(c), attorney's fees can only be recovered by the prevailing party opposing the motion upon a showing that the "special motion to strike is frivolous or is solely intended to cause unnecessary delay." Dennis fails to make that showing in opposition to this motion.

(2) Dennis is obligated to demonstrate that he complied with the safe harbor provision of Code of Civil Procedure section 128.5 as a condition of receiving attorney's fees as a prevailing opposing party. (*Zarate v. McDaniel* (2023) 97 Cal.App.5th 484, 488-491; *Changsha Metro Group Co., Ltd. v. Xufeng* (2020) 57 Cal.App.5th 1, 19-23.) Dennis has made no effort to do so.

(3) The Court denies this request without prejudice to a duly-noticed motion for attorney's fees, in which Dennis would have an opportunity to demonstrate entitlement to attorney's fees.

Counsel for moving party shall give notice of this ruling. A copy of this Tentative Decision (if adopted by the Court as its final decision without modification) or of the Clerk's Minutes after hearing may be attached to and incorporated by reference in any such notice of ruling in lieu of quoting the language of the Tentative Decision or Clerk's Minutes verbatim in the body of the notice of ruling.

¹ The parties are referred to by first names for ease of reference. No disrespect is intended.